Subject: Fwd:
From: Nuha Sayegh <nuhasayegh.ca@gmail.com>
To: "Eric Jones (eric@recovery-compass.org)" <eric@recovery-compass.org>
Date Sent: Wednesday, December 3, 2025 10:12:51 PM GMT-08:00
Date Received: Wednesday, December 3, 2025 10:13:06 PM GMT-08:00
Attachments: RECONSIDERATION SUPPLEMENT MOTION.eml,RECONSIDERATION SUPPLEMENT MOTION.docx,Information for investigation re alleged incident — Tuesday, Aug 26, 2025.eml,SUPPLEMEMENT RECONSIDERATION MOTION PLEASE REVIEW.eml,RECONSIDERATION SUPPLEMENT MOTION.docx,RECONSIDERATION SUPPLEMENT MOTION.docx,RECONSIDERATION SUPPLEMENT MOTION.docx

Subject: RECONSIDERATION SUPPLEMENT MOTION
From: Freddy Sayegh <Freddy@thefoxxfirm.com>
To: Gilbert Quinones <gqlaw2004@yahoo.com>
Date Sent: Friday, October 24, 2025 4:38:45 PM GMT-07:00
Date Received: Wednesday, December 3, 2025 11:12:51 PM GMT-07:00
Attachments: RECONSIDERATION SUPPLEMENT MOTION.docx

Please review and let me know if it is worth filing.

Thank you

FAHED FREDDY SAYEGH
407 E. Woodbury Rd.
Altadena, California 91001
Telephone: (310) 877-5033
freddy@thefoxxfirm.com

IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FAHED SAYEGH Petitioner, v. NUHA SAYEGH, Respondent.	CASE NO: 25PDRO01260 (r/w 25PDFL01441 (dissolution lead) (r/w 25PDFL01460 (related dv matter) **[PROPOSED] NOTICE OF MOTION AND MOTION FOR RECONSIDERATION. DECL. FAHED SAYEGH** **(**Code of Civil Procedure §1008 CAL. RULES OF COURT, RULE 2.251)

I. INTRODUCTION

Respondent respectfully requests reconsideration to permit a complete evidentiary record under Family Code §217 with live testimony and authenticated exhibits. The October 15 setting addressed urgent access-to-children concerns; given late supplemental filings and only two court days, Respondent could not secure experts, percipient witnesses, or records custodians. A brief evidentiary setting will promote accuracy and finality without attributing fault to any participant.

II. NEW OR DIFFERENT FACTS DISCOVERED AFTER THE HEARING (CCP §1008(a))

A motion for reconsideration may be granted upon new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) This motion is timely and supported by facts that arose after the October 15 hearing and could not, with reasonable diligence, have been presented that day.

Timeliness/alternative authority. Independently of section 1008, the Court retains inherent authority to correct interim rulings when a more complete record is available (Le Francois v. Goel (2005) 35 Cal.4th 1094), may modify injunctive relief upon changed facts (Code Civ. Proc., § 533), and may modify domestic violence restraining orders on changed circumstances (Fam. Code, § 6345).

A. DCFS school interview (occurred Oct. 16; learned Oct. 19). DCFS social worker Tyler Polk interviewed the minor at Eliot Middle School (~1:20 p.m.). The child reported no Aug. 26 incident at Respondent's home, that neither she nor Mother were there that day, and that Mother instructed her to claim she witnessed an assault, had been hit, and that Respondent wanted to "take the kids away." She also stated she has never witnessed Respondent hitting Mother. Respondent will subpoena Polk and DCFS records.

Admissibility/handling of minor records. Respondent will call DCFS social worker Tyler Polk and seek admission of certified DCFS records under Evidence Code section 1280. To address confidentiality, Respondent requests a protective order and, if needed, in-camera review (Welf. & Inst. Code, § 827; Cal. Rules of Court, rules 5.552, 2.550–2.551). The minor's statements are offered on credibility and state of mind; any further use will be supported by live testimony and applicable exceptions.

B. June 8, 2025 messages recovered Oct. 19 from the minor's phone. Same-day messages describe hand/eye issues and resting, with a photo of Mother's hand—no mention of assault. These contemporaneous statements support a non-assault explanation and contradict later testimony. (Evid. Code §780.) These messages are party admissions (Evid. Code, § 1220) and will be authenticated via device screenshots/metadata and, if necessary, a custodian declaration.

C. Diligence and supplementation. Transcript requests submitted Oct. 15 and Oct. 19 (rejected "case not found"); resubmitted Oct. 23 (pending). Respondent will promptly lodge supplemental transcript excerpts upon receipt.

III. REQUEST FOR RECONSIDERATION TO PERMIT A COMPLETE EVIDENTIARY RECORD

A. §217 / Elkins — request for live testimony. The Oct. 15 setting did not include live testimony within the limited time available. §217 presumes oral testimony; Respondent requests a short live-witness hearing to evaluate credibility, timeline, and mechanism-of-injury.

B. Evidence on a limited record. Certain collateral items were received without foundational witnesses, while central impeachment/exculpatory materials (experts, percipient witnesses, custodians) were unreachable in the time available. An even-handed §352 hearing will allow both sides to present authenticated, probative evidence. For example, a 2011 "broken-window" photograph was received without prior disclosure or authentication; a short Evidence Code §§ 352 and 1400–1402 foundation hearing will avoid collateral confusion.

C. Practical constraints. Late-week supplemental materials left two court days for subpoenas. A short evidentiary setting is needed for proper foundation and cross-examination.

D. Reliability/tailoring. A complete record will aid reliable findings under the DVPA and ensure any relief is narrowly tailored to present circumstances.

E. Credibility, motive, bias (Evid. Code §780). Live testimony is necessary to evaluate credibility and alleged coaching.

IV. WHY RESPONDENT PROCEEDED ON OCT. 15 (NO WAIVER OF §217/ELKINS RIGHTS)

Respondent appeared on Oct. 15 to address urgent access-to-children issues. On Oct. 6, Respondent filed an ex parte application for a non-interference order; the Court denied relief on an ex parte basis and rolled the request to be heard on Oct. 15. Proceeding to seek non-interference/contact relief on Oct. 15 did not reflect readiness to try newly served allegations; it reflected necessity. With only two court days, Respondent could not secure

experts, percipient witnesses, or records custodians. When asked, he agreed to proceed and stated he was "ready" because he needed an order permitting him to see and speak with the children. He had seen one child once (~2 hours) in ~six weeks; any continuance of 45–60 days to secure experts/subpoenas would have pushed contact toward four months.

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If an evidentiary hearing is set, Respondent will call:

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• Tyler Polk (DCFS) — school interview; statements regarding Aug. 26 and coaching; DCFS records authentication (Evid. Code §§1280, 1220/1235, 780).

Proposed §217 hearing plan (approx. 2.5 hours total): Respondent (15 min); Polk (25); Tuesday housekeeper (20); treating physician (25); SFX expert (20) [or proceed with physician only if preferred]; records custodian (20); cross-examination (30); argument (25).

VI. TIMELINE HIGHLIGHTS

• Jan. 19, 2022: Petitioner recanted to Antoun/Lohmann; admitted in court she was under the influence and the aggressor; acknowledged makeup embellishment.

• Nov. 4, 2023: "Lip" image consistent with cosmetic injections.

• June 8, 2025: Same-day messages/photo (found Oct. 19) show non-assault explanation.

• Aug. 26, 2025: Did not occur per child's school interview and was told to lie.

• Sept. 8, 2025: "Kidnapping" claim contradicted by neutral timestamps (school → dinner → Dodgers game; FaceTime from stadium).

• Sept. 17, 2025: Uncorroborated police report.

VII. CONSEQUENCES ALREADY SUFFERED & PROGRAMS COMPLETED (JAN. 19, 2022)

Without conceding the allegation, even if the Court does not credit the makeup point, Respondent has already borne substantial consequences and completed extensive rehabilitation:

A. Family/Custody: ~9 months loss of placement; 18 months DCFS; ~9 months out of home; public stigma.

C. Programs (All Completed): 52-week DV (High Road, Pasadena); 52-week family therapy (Hannah Joo, LMFT); 18 DCFS family meetings + Feb. 8, 2023 Family Engagement; couples counseling (Regain.us: Anderson, LMFT; Harris, LCSW); therapy groupinars (Apr. 5 & 7, 2022); individual therapy (Dr. Stan Rushing); parenting: Up to Parents (6 hrs, 3/17/2022); CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting).

VIII. SANCTIONS CONTENTIONS ARE UNFOUNDED (CCP § 128.7; FAM. CODE § 271)

A. Section 128.7 compliance. Sanctions under Code of Civil Procedure section 128.7 require a separately noticed motion served at least 21 days before filing (the "safe harbor"); filing cannot occur until day 22. (Id., subd. (c)(1).) Absent strict compliance, sanctions are unavailable.

B. Good-faith basis and diligence. This motion relies on new post-hearing facts (DCFS interview; June 8 messages), a statutory entitlement to live testimony (§ 217; Elkins), and prompt transcript requests. It is timely and narrowly tailored.

C. Family Code section 271. Section 271 requires notice, an opportunity to be heard, a finding that conduct frustrated settlement or unreasonably increased costs, and consideration of ability to pay; sanctions may not be punitive. (See, e.g., In re Marriage of Davenport (2011) 194 Cal.App.4th 1507, 1530–1531; In re Marriage of Feldman (2007) 153 Cal.App.4th 1470, 1478–1481.) Respondent has repeatedly proposed a brief § 217 hearing and a modest supplemental schedule—conduct that reduces, not increases, cost.

D. Meet-and-confer / stipulation. Respondent invites a stipulation for a short § 217 evidentiary hearing and a limited supplemental briefing/exhibit schedule. This is the least-cost path to a reliable record.

IX. REQUESTED RELIEF

Respondent respectfully requests orders: (1) vacating Oct. 15, 2025; (2) setting a §217 evidentiary hearing (½-day minimum); (3) authorizing short-form subpoenas as above; (4) permitting transcript/supplement upon receipt; and (5) applying §352 even-handedly with proper

FAHED SAYEGH

In Pro Per x_____ 10/24/2025

DECLARATION OF FAHED SAYEGH

SUPPLEMENT

I, Fahed "Freddy" Sayegh, declare:

I am the Respondent and the biological father of Mia and Jordan Sayegh. I have personal knowledge of the facts stated and could testify competently thereto.

New evidence discovered after Oct. 15 9. On Oct. 16, 2025, Tyler Polk, a DCFS social worker, interviewed our daughter at Eliot Middle School; I learned of this on Oct. 19. She reported that no incident occurred at my home on Aug. 26 and that neither she nor Petitioner were there; she further reported Petitioner instructed her to say she witnessed an assault, to say she had been hit, and to say I wanted to take the children away. She has never witnessed me hitting Petitioner. I intend to subpoena Mr. Polk and DCFS records. 10. On Oct. 19, 2025, I recovered messages from our daughter's iPhone reflecting Petitioner's June 8, 2025 statements describing hand/eye issues and the need to rest, with a same-day photo of her hand, and no mention of assault. These statements contradict later testimony and are consistent with a non-assault cause.

Procedural history and exigency 2. On Sept. 9, 2025, Petitioner filed for a protective order (Case No. 25PDR001246). The Court granted relief as to Petitioner only and denied relief as to the children. 3. On Sept. 12, 2025, I filed my own ex parte request (Case No. 25PDR001260) seeking protection for myself and the children. The ex parte was denied, with a hearing set for Oct. 3, 2025.

3B. On Oct. 6, 2025, I filed an Ex Parte Application for a Non-Interference Order. The Court denied ex parte relief and set/rolled the request to be heard on Oct. 15, 2025.

3A. On Oct. 1, 2025, the Court did not grant non-interference relief ex parte and **consolidated/rolled** that request into the **Oct. 15, 2025** hearing together with the DVRO calendar. 4. On Sept. 18, 2025, I filed an ex parte request for visitation and custody in this family case (25PDFL01441). The Court denied ex parte relief for lack of exigency. 5. On Oct. 1, 2025,

the Court set matters for Oct. 15, 2025 under this case number. The DVRO matter that had been scheduled for October 1 was consolidated/continued to October 15 by the assigned judicial officer. When I requested emergency orders, the Court stated: “Sir, there is nothing preventing you from being with, seeing, communicating, or having the children live with you.” Despite that statement, Petitioner continued concealing the children and blocking contact.

5A. After my Ex Parte Application for Non-Interference was not granted and was consolidated into the October 15 calendar, I did not seek to continue the October 15 date another 45–60 days to secure experts and serve subpoenas because doing so would have resulted in nearly four months without either seeing or hearing from my children. Out of necessity and desperation to restore contact, I proceeded on Oct. 15 while preserving my rights under Family Code §217/Elkins. I therefore appeared on October 15 to seek immediate non-interference/contact relief while preserving my rights under Family Code §217/Elkins.

Concealment, school disruption, and attempts to locate 6. Since Sept. 8, 2025, Petitioner has concealed the children, blocked their phones and social access, and misrepresented to schools that restraining orders existed against me. She provided unsigned “protective” directives to Eliot Arts and Altadena Arts Magnet stating the children were to be released only to her. 7. Petitioner repeatedly enrolled/un-enrolled the children at different schools (Oak Middle School, La Rosa, Eliot Arts Magnet, Altadena Arts Magnet). The children missed consecutive school days (e.g., Sept. 9, 10, 11, 12, 15, 16). As of early October, I could not confirm enrollment in Monrovia or Pasadena Unified. 7A. After searching for approximately six weeks, I located Mia on her first day back at school. I was able to see her only once, for approximately two hours. I immediately ensured I could communicate with her by securing contact with her and her phone. On that same day, Petitioner called the police on me despite my full authority to see my children; no lawful order barred my contact. 8. On Oct. 1, 2025, I appeared at Monrovia Unified with a witness and presented identification and birth certificates. I cited FERPA and Ed. Code provisions, yet access was refused absent a custody order. Pasadena Unified confirmed the children were not enrolled

there. 8B. When Petitioner's supplemental declaration added new allegations shortly before the Oct. 15 hearing, I had only two court days to respond. I was unable, within that time, to secure attendance of experts, percipient witnesses, or records custodians. I proceeded on Oct. 15 to request non-interference orders so I could see and speak with my children, with the understanding that any merits hearing on the expanded allegations would require live testimony under Family Code §217.

Jan. 19, 2022 incident and consequences/programs 11. Petitioner previously recanted material aspects of the Jan. 19, 2022 allegation to DDA Sara Antoun and Detective Lohmann; in court she admitted being under the influence and the aggressor (sweater/zipper scratch; thrown table) and acknowledged using makeup to embellish injuries. Regardless, I suffered substantial collateral consequences: approximately nine months without the children, 18 months of DCFS supervision, arrest and $50,000 bail ($5,000 posted), removal from the family home for about nine months, public stigma, and significant fees. I completed multiple court-approved programs, including a 52-week DV program (The High Road), 52-week family therapy (Hannah Joo, LMFT), 18 DCFS family meetings plus a Family Engagement Meeting, marriage counseling via Regain.us, individual therapy (Dr. Stan Rushing), and parenting courses through Up to Parents and CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting). These facts are offered to address present risk, need, and tailoring—not as a concession of guilt.

Transcripts; supplementation 12. I ordered transcripts on Oct. 15 and Oct. 19 (both rejected "case not found") and resubmitted on Oct. 23 (pending). I will promptly supplement this motion with certified transcripts upon receipt.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2025, at Altadena, California.

Fahed “Freddy” Sayegh

ATTACHMENT – REQUEST FOR LIVE TESTIMONY UNDER FAMILY CODE § 217 (Elkins)

Legal Standard. Family Code § 217 presumes live, in-person (or remote) testimony in contested hearings if requested; denial requires an express finding of **good cause** and the court must state reasons. (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337.) Respondent respectfully requests a brief, focused evidentiary hearing so credibility, timeline, and mechanism-of-injury can be assessed on a complete record.

Why Live Testimony Is Needed Now. A Friday-evening supplemental declaration left only two court days before the Oct. 15 setting, making it impracticable to subpoena experts, percipient witnesses, and records custodians. Post-hearing facts (DCFS school interview; June 8 messages) directly affect credibility and material issues. No good cause exists to refuse oral testimony; a short hearing will materially assist reliable findings.

Witness List, Offers of Proof, and Time Estimates (Total ≈ 2.5 hours).

1. **Tyler Polk (DCFS social worker)** — school interview of minor on Oct. 16; statements that no Aug. 26 incident occurred at Respondent’s home and that coaching occurred; foundation for DCFS records. *Evid. Code §§ 1280, 780.* **(25 min)**
2. **Tuesday Housekeeper (11:00 a.m.–4:00 p.m.)** — no altercation; neither parent present during claimed Aug. 26 window. *Evid. Code § 702.* **(20 min)**
3. **Treating/Procedural Physician (lip injections)** — mechanism/opinion that “lip injury” is inconsistent with blunt trauma and consistent with cosmetic injection after-effects; authenticate related records/photos. *Evid. Code §§ 720, 801–802; 1400–1402.* **(25 min)**
4. **Special-Effects/Makeup Expert (SFX)** — photographic artifacts inconsistent with trauma; reproducible demonstration. *Evid. Code §§ 720, 801–802.* **(20 min)** *(If the Court*

prefers one expert, Respondent will proceed with the physician only and submit SFX analysis by declaration.)

5. **Records Custodian(s)** — authenticate neutral, time-stamped records: school attendance/checkout; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10. *Evid. Code §§ 1271, 1560–1561; 780.* **(20 min)**
6. **DDA Sara Antoun** — authentication/summary of communications reflecting recantation/reduction regarding Jan. 19, 2022 and absence of corroboration. *Evid. Code §§ 780, 1235, 1280.* **(20 min)**
7. **Detective Lohmann** — Petitioner's recantations; notes; BWV/dispatch indices. *Evid. Code §§ 780, 1235, 1280.* **(20 min)**
8. **Respondent (limited)** — succinct narrative to connect timestamps and exhibits. **(15 min)**

Cross-examination/argument reserve: (≈55 min)

Exhibits To Authenticate. (a) **June 8, 2025 iMessage thread** with same-day hand photo (party-opponent admissions); (b) school attendance/checkout logs; (c) carrier call/FaceTime metadata; (d) merchant receipts; (e) livestream/ticketing logs; (f) medical/aftercare records for injections; (g) DCFS notes and email correspondence; (h) prior statements to DDA/Detective. *Evid. Code §§ 1220, 1271, 1280, 1400–1402.*

Confidentiality & Minor Handling. Respondent requests a **protective order** and, if appropriate, **in-camera review** for DCFS/minor records. *Welf. & Inst. Code § 827; CRC 5.552, 2.550–2.551.*

Logistics. Respondent and witnesses are prepared to appear **in person** or **by remote means** consistent with departmental procedures. Respondent is amenable to reasonable time limits and sequencing as the Court prefers.

Proposed Order (for this request). Set a **§ 217 evidentiary hearing**; authorize short-form subpoenas for the witnesses/custodians listed; require exhibit exchange 5 court days prior; apply **Evid. Code § 352** even-handedly with authentication under **§§ 1400–1402**; allow supplementation with certified transcripts upon receipt.

I am over the age of 18 years and not a party to this action. My business address is **409 East Woodbury Road, Altadena, CA 91001**.

On **October 11, 2025**, I served the foregoing document entitled:

MOTION FOR RECONSIDERATION

on the following person:

Attorney for Petitioner
Kirk A. Kolodji, Esq.
Kolodji Family Law, PC
35 North Lake Avenue, Suite 710
Pasadena, CA 91101
Tel: (310) 691-9671
Email: kirk@kolodjifamilylaw.com

☑ **BY ELECTRONIC SERVICE (CRC 2.251):**
Based on a written agreement of the parties to accept service by electronic transmission, I caused the document to be served to the email address listed above.

Executed on **October 10, 2025**, at **Altadena, California.**

X **SAMERA ARKEL X Samera Arkel**

FAHED FREDDY SAYEGH
407 E. Woodbury Rd.
Altadena, California 91001
Telephone: (310) 877-5033
freddy@thefoxxfirm.com

IN PRO PER

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FAHED SAYEGH

In Pro Per x_____ 10/24/2025

DECLARATION OF FAHED SAYEGH

SUPPLEMENT

I, Fahed "Freddy" Sayegh, declare:

I am the Respondent and the biological father of Mia and Jordan Sayegh. I have personal knowledge of the facts stated and could testify competently thereto.

New evidence discovered after Oct. 15 9. On Oct. 16, 2025, Tyler Polk, a DCFS social worker, interviewed our daughter at Eliot Middle School; I learned of this on Oct. 19. She reported that no incident occurred at my home on Aug. 26 and that neither she nor Petitioner were there; she further reported Petitioner instructed her to say she witnessed an assault, to say she had been hit, and to say I wanted to take the children away. She has never witnessed me hitting Petitioner. I intend to subpoena Mr. Polk and DCFS records. 10. On Oct. 19, 2025, I recovered messages from our daughter's iPhone reflecting Petitioner's June 8, 2025 statements describing hand/eye issues and the need to rest, with a same-day photo of her hand, and no mention of assault. These statements contradict later testimony and are consistent with a non-assault cause.

Procedural history and exigency 2. On Sept. 9, 2025, Petitioner filed for a protective order (Case No. 25PDR001246). The Court granted relief as to Petitioner only and denied relief as to the children. 3. On Sept. 12, 2025, I filed my own ex parte request (Case No. 25PDR001260) seeking protection for myself and the children. The ex parte was denied, with a hearing set for Oct. 3, 2025.

3B. On Oct. 6, 2025, I filed an Ex Parte Application for a Non-Interference Order. The Court denied ex parte relief and set/rolled the request to be heard on Oct. 15, 2025.

3A. On Oct. 1, 2025, the Court did not grant non-interference relief ex parte and **consolidated/rolled** that request into the **Oct. 15, 2025** hearing together with the DVRO calendar. 4. On Sept. 18, 2025, I filed an ex parte request for visitation and custody in this family case (25PDFL01441). The Court denied ex parte relief for lack of exigency. 5. On Oct. 1, 2025,

the Court set matters for Oct. 15, 2025 under this case number. The DVRO matter that had been scheduled for October 1 was consolidated/continued to October 15 by the assigned judicial officer. When I requested emergency orders, the Court stated: “Sir, there is nothing preventing you from being with, seeing, communicating, or having the children live with you.” Despite that statement, Petitioner continued concealing the children and blocking contact.

5A. After my Ex Parte Application for Non-Interference was not granted and was consolidated into the October 15 calendar, I did not seek to continue the October 15 date another 45–60 days to secure experts and serve subpoenas because doing so would have resulted in nearly four months without either seeing or hearing from my children. Out of necessity and desperation to restore contact, I proceeded on Oct. 15 while preserving my rights under Family Code §217/Elkins. I therefore appeared on October 15 to seek immediate non-interference/contact relief while preserving my rights under Family Code §217/Elkins.

Concealment, school disruption, and attempts to locate 6. Since Sept. 8, 2025, Petitioner has concealed the children, blocked their phones and social access, and misrepresented to schools that restraining orders existed against me. She provided unsigned “protective” directives to Eliot Arts and Altadena Arts Magnet stating the children were to be released only to her. 7. Petitioner repeatedly enrolled/un-enrolled the children at different schools (Oak Middle School, La Rosa, Eliot Arts Magnet, Altadena Arts Magnet). The children missed consecutive school days (e.g., Sept. 9, 10, 11, 12, 15, 16). As of early October, I could not confirm enrollment in Monrovia or Pasadena Unified. 7A. After searching for approximately six weeks, I located Mia on her first day back at school. I was able to see her only once, for approximately two hours. I immediately ensured I could communicate with her by securing contact with her and her phone. On that same day, Petitioner called the police on me despite my full authority to see my children; no lawful order barred my contact. 8. On Oct. 1, 2025, I appeared at Monrovia Unified with a witness and presented identification and birth certificates. I cited FERPA and Ed. Code provisions, yet access was refused absent a custody order. Pasadena Unified confirmed the children were not enrolled

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Jan. 19, 2022 incident and consequences/programs 11. Petitioner previously recanted material aspects of the Jan. 19, 2022 allegation to DDA Sara Antoun and Detective Lohmann; in court she admitted being under the influence and the aggressor (sweater/zipper scratch; thrown table) and acknowledged using makeup to embellish injuries. Regardless, I suffered substantial collateral consequences: approximately nine months without the children, 18 months of DCFS supervision, arrest and $50,000 bail ($5,000 posted), removal from the family home for about nine months, public stigma, and significant fees. I completed multiple court-approved programs, including a 52-week DV program (The High Road), 52-week family therapy (Hannah Joo, LMFT), 18 DCFS family meetings plus a Family Engagement Meeting, marriage counseling via Regain.us, individual therapy (Dr. Stan Rushing), and parenting courses through Up to Parents and CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting). These facts are offered to address present risk, need, and tailoring—not as a concession of guilt.

Transcripts; supplementation 12. I ordered transcripts on Oct. 15 and Oct. 19 (both rejected "case not found") and resubmitted on Oct. 23 (pending). I will promptly supplement this motion with certified transcripts upon receipt.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2025, at Altadena, California.

Fahed “Freddy” Sayegh

ATTACHMENT – REQUEST FOR LIVE TESTIMONY UNDER FAMILY CODE § 217 (Elkins)

Legal Standard. Family Code § 217 presumes live, in-person (or remote) testimony in contested hearings if requested; denial requires an express finding of **good cause** and the court must state reasons. (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337.) Respondent respectfully requests a brief, focused evidentiary hearing so credibility, timeline, and mechanism-of-injury can be assessed on a complete record.

Why Live Testimony Is Needed Now. A Friday-evening supplemental declaration left only two court days before the Oct. 15 setting, making it impracticable to subpoena experts, percipient witnesses, and records custodians. Post-hearing facts (DCFS school interview; June 8 messages) directly affect credibility and material issues. No good cause exists to refuse oral testimony; a short hearing will materially assist reliable findings.

Witness List, Offers of Proof, and Time Estimates (Total ≈ 2.5 hours).

1. **Tyler Polk (DCFS social worker)** — school interview of minor on Oct. 16; statements that no Aug. 26 incident occurred at Respondent’s home and that coaching occurred; foundation for DCFS records. *Evid. Code §§ 1280, 780.* **(25 min)**
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3. **Treating/Procedural Physician (lip injections)** — mechanism/opinion that “lip injury” is inconsistent with blunt trauma and consistent with cosmetic injection after-effects; authenticate related records/photos. *Evid. Code §§ 720, 801–802; 1400–1402.* **(25 min)**
4. **Special-Effects/Makeup Expert (SFX)** — photographic artifacts inconsistent with trauma; reproducible demonstration. *Evid. Code §§ 720, 801–802.* **(20 min)** *(If the Court*

prefers one expert, Respondent will proceed with the physician only and submit SFX analysis by declaration.)

5. **Records Custodian(s)** — authenticate neutral, time-stamped records: school attendance/checkout; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10. *Evid. Code §§ 1271, 1560–1561; 780.* **(20 min)**
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8. **Respondent (limited)** — succinct narrative to connect timestamps and exhibits. **(15 min)**

Cross-examination/argument reserve: (≈55 min)

Exhibits To Authenticate. (a) **June 8, 2025 iMessage thread** with same-day hand photo (party-opponent admissions); (b) school attendance/checkout logs; (c) carrier call/FaceTime metadata; (d) merchant receipts; (e) livestream/ticketing logs; (f) medical/aftercare records for injections; (g) DCFS notes and email correspondence; (h) prior statements to DDA/Detective. *Evid. Code §§ 1220, 1271, 1280, 1400–1402.*

Confidentiality & Minor Handling. Respondent requests a **protective order** and, if appropriate, **in-camera review** for DCFS/minor records. *Welf. & Inst. Code § 827; CRC 5.552, 2.550–2.551.*

Logistics. Respondent and witnesses are prepared to appear **in person** or **by remote means** consistent with departmental procedures. Respondent is amenable to reasonable time limits and sequencing as the Court prefers.

Proposed Order (for this request). Set a **§ 217 evidentiary hearing**; authorize short-form subpoenas for the witnesses/custodians listed; require exhibit exchange 5 court days prior; apply **Evid. Code § 352** even-handedly with authentication under **§§ 1400–1402**; allow supplementation with certified transcripts upon receipt.

I am over the age of 18 years and not a party to this action. My business address is **409 East Woodbury Road, Altadena, CA 91001**.

On **October 11, 2025**, I served the foregoing document entitled:

MOTION FOR RECONSIDERATION

on the following person:

Attorney for Petitioner
Kirk A. Kolodji, Esq.
Kolodji Family Law, PC
35 North Lake Avenue, Suite 710
Pasadena, CA 91101
Tel: (310) 691-9671
Email: kirk@kolodjifamilylaw.com

☑ **BY ELECTRONIC SERVICE (CRC 2.251):**
Based on a written agreement of the parties to accept service by electronic transmission, I caused the document to be served to the email address listed above.

Executed on **October 10, 2025**, at **Altadena, California.**

X **SAMERA ARKEL X Samera Arkel**

Subject: RE: Information for investigation re alleged incident — Tuesday, Aug 26, 2025
From: Tyler Polk <PolkT@dcfs.lacounty.gov>
To: 'Freddy Sayegh' <Freddy@thefoxxfirm.com>
Date Sent: Tuesday, October 7, 2025 11:53:01 AM GMT-07:00
Date Received: Tuesday, October 7, 2025 11:53:09 AM GMT-07:00

Received, thank you

Subject: SUPPLEMEMENT RECONSIDERATION MOTION PLEASE REVIEW
From: Freddy Sayegh <Freddy@thefoxxfirm.com>
To: Rahim Multani <rahimmultani@gmail.com>
Date Sent: Friday, October 24, 2025 8:33:42 AM GMT-07:00
Date Received: Wednesday, December 3, 2025 11:12:51 PM GMT-07:00
Attachments: RECONSIDERATION SUPPLEMENT MOTION.docx

FAHED FREDDY SAYEGH
407 E. Woodbury Rd.
Altadena, California 91001
Telephone: (310) 877-5033
freddy@thefoxxfirm.com

IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FAHED SAYEGH Petitioner, v. NUHA SAYEGH, Respondent.	CASE NO: 25PDRO01260 (r/w 25PDFL01441 (dissolution lead) (r/w 25PDFL01460 (related dv matter) **[PROPOSED] NOTICE OF MOTION AND MOTION FOR RECONSIDERATION. DECL. FAHED SAYEGH** **(**Code of Civil Procedure §1008 CAL. RULES OF COURT, RULE 2.251)

I. INTRODUCTION

Respondent respectfully requests reconsideration to permit a complete evidentiary record under Family Code §217 with live testimony and authenticated exhibits. The October 15 setting addressed urgent access-to-children concerns; given late supplemental filings and only two court days, Respondent could not secure experts, percipient witnesses, or records custodians. A brief evidentiary setting will promote accuracy and finality without attributing fault to any participant.

II. NEW OR DIFFERENT FACTS DISCOVERED AFTER THE HEARING (CCP §1008(a))

A motion for reconsideration may be granted upon new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) This motion is timely and supported by facts that arose after the October 15 hearing and could not, with reasonable diligence, have been presented that day.

Timeliness/alternative authority. Independently of section 1008, the Court retains inherent authority to correct interim rulings when a more complete record is available (Le Francois v. Goel (2005) 35 Cal.4th 1094), may modify injunctive relief upon changed facts (Code Civ. Proc., § 533), and may modify domestic violence restraining orders on changed circumstances (Fam. Code, § 6345).

A. DCFS school interview (occurred Oct. 16; learned Oct. 19). DCFS social worker Tyler Polk interviewed the minor at Eliot Middle School (~1:20 p.m.). The child reported no Aug. 26 incident at Respondent's home, that neither she nor Mother were there that day, and that Mother instructed her to claim she witnessed an assault, had been hit, and that Respondent wanted to "take the kids away." She also stated she has never witnessed Respondent hitting Mother. Respondent will subpoena Polk and DCFS records.

Admissibility/handling of minor records. Respondent will call DCFS social worker Tyler Polk and seek admission of certified DCFS records under Evidence Code section 1280. To address confidentiality, Respondent requests a protective order and, if needed, in-camera review (Welf. & Inst. Code, § 827; Cal. Rules of Court, rules 5.552, 2.550–2.551). The minor's statements are offered on credibility and state of mind; any further use will be supported by live testimony and applicable exceptions.

B. June 8, 2025 messages recovered Oct. 19 from the minor's phone. Same-day messages describe hand/eye issues and resting, with a photo of Mother's hand—no mention of assault. These contemporaneous statements support a non-assault explanation and contradict later testimony. (Evid. Code §780.) These messages are party admissions (Evid. Code, § 1220) and will be authenticated via device screenshots/metadata and, if necessary, a custodian declaration.

C. Diligence and supplementation. Transcript requests submitted Oct. 15 and Oct. 19 (rejected "case not found"); resubmitted Oct. 23 (pending). Respondent will promptly lodge supplemental transcript excerpts upon receipt.

III. REQUEST FOR RECONSIDERATION TO PERMIT A COMPLETE EVIDENTIARY RECORD

A. §217 / Elkins — request for live testimony. The Oct. 15 setting did not include live testimony within the limited time available. §217 presumes oral testimony; Respondent requests a short live-witness hearing to evaluate credibility, timeline, and mechanism-of-injury.

B. Evidence on a limited record. Certain collateral items were received without foundational witnesses, while central impeachment/exculpatory materials (experts, percipient witnesses, custodians) were unreachable in the time available. An even-handed §352 hearing will allow both sides to present authenticated, probative evidence. For example, a 2011 "broken-window" photograph was received without prior disclosure or authentication; a short Evidence Code §§ 352 and 1400–1402 foundation hearing will avoid collateral confusion.

C. Practical constraints. Late-week supplemental materials left two court days for subpoenas. A short evidentiary setting is needed for proper foundation and cross-examination.

D. Reliability/tailoring. A complete record will aid reliable findings under the DVPA and ensure any relief is narrowly tailored to present circumstances.

E. Credibility, motive, bias (Evid. Code §780). Live testimony is necessary to evaluate credibility and alleged coaching.

IV. WHY RESPONDENT PROCEEDED ON OCT. 15 (NO WAIVER OF §217/ELKINS RIGHTS)

Respondent appeared on Oct. 15 to address urgent access-to-children issues. On Oct. 6, Respondent filed an ex parte application for a non-interference order; the Court denied relief on an ex parte basis and rolled the request to be heard on Oct. 15. Proceeding to seek non-interference/contact relief on Oct. 15 did not reflect readiness to try newly served allegations; it reflected necessity. With only two court days, Respondent could not secure

experts, percipient witnesses, or records custodians. When asked, he agreed to proceed and stated he was "ready" because he needed an order permitting him to see and speak with the children. He had seen one child once (~2 hours) in ~six weeks; any continuance of 45–60 days to secure experts/subpoenas would have pushed contact toward four months.

V. OFFER OF PROOF (IF RECONSIDERATION IS GRANTED)

If an evidentiary hearing is set, Respondent will call:

• Treating/Procedural Physician/Expert (lip injections) — mechanism inconsistent with blunt trauma (Evid. Code §§720, 801–802; §§1400–1402).

• Special-Effects/Makeup Expert — photographic artifacts inconsistent with trauma; reproducible.

• Tuesday Housekeeper (11:00–4:00) — no altercation; neither parent present Aug. 26 (Evid. Code §702).

• DDA Sara Antoun — recantation/reduction of Jan. 19, 2022 claim; lack of DV corroboration (Evid. Code §§780, 1235, 1280).

• Detective Lohmann — Petitioner's recantations; notes; BWV/dispatch gaps (same authorities).

• Records Custodians — school attendance; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10 (Evid. Code §§1271, 1560–1561; §780).

• Tyler Polk (DCFS) — school interview; statements regarding Aug. 26 and coaching; DCFS records authentication (Evid. Code §§1280, 1220/1235, 780).

Proposed §217 hearing plan (approx. 2.5 hours total): Respondent (15 min); Polk (25); Tuesday housekeeper (20); treating physician (25); SFX expert (20) [or proceed with physician only if preferred]; records custodian (20); cross-examination (30); argument (25).

VI. TIMELINE HIGHLIGHTS

• Jan. 19, 2022: Petitioner recanted to Antoun/Lohmann; admitted in court she was under the influence and the aggressor; acknowledged makeup embellishment.

• Nov. 4, 2023: "Lip" image consistent with cosmetic injections.

• June 8, 2025: Same-day messages/photo (found Oct. 19) show non-assault explanation.

• Aug. 26, 2025: Did not occur per child's school interview and was told to lie.

• Sept. 8, 2025: "Kidnapping" claim contradicted by neutral timestamps (school → dinner → Dodgers game; FaceTime from stadium).

• Sept. 17, 2025: Uncorroborated police report.

VII. CONSEQUENCES ALREADY SUFFERED & PROGRAMS COMPLETED (JAN. 19, 2022)

Without conceding the allegation, even if the Court does not credit the makeup point, Respondent has already borne substantial consequences and completed extensive rehabilitation:

A. Family/Custody: ~9 months loss of placement; 18 months DCFS; ~9 months out of home; public stigma.

C. Programs (All Completed): 52-week DV (High Road, Pasadena); 52-week family therapy (Hannah Joo, LMFT); 18 DCFS family meetings + Feb. 8, 2023 Family Engagement; couples counseling (Regain.us: Anderson, LMFT; Harris, LCSW); therapy groupinars (Apr. 5 & 7, 2022); individual therapy (Dr. Stan Rushing); parenting: Up to Parents (6 hrs, 3/17/2022); CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting).

VIII. SANCTIONS CONTENTIONS ARE UNFOUNDED (CCP § 128.7; FAM. CODE § 271)

A. Section 128.7 compliance. Sanctions under Code of Civil Procedure section 128.7 require a separately noticed motion served at least 21 days before filing (the "safe harbor"); filing cannot occur until day 22. (Id., subd. (c)(1).) Absent strict compliance, sanctions are unavailable.

B. Good-faith basis and diligence. This motion relies on new post-hearing facts (DCFS interview; June 8 messages), a statutory entitlement to live testimony (§ 217; Elkins), and prompt transcript requests. It is timely and narrowly tailored.

C. Family Code section 271. Section 271 requires notice, an opportunity to be heard, a finding that conduct frustrated settlement or unreasonably increased costs, and consideration of ability to pay; sanctions may not be punitive. (See, e.g., In re Marriage of Davenport (2011) 194 Cal.App.4th 1507, 1530–1531; In re Marriage of Feldman (2007) 153 Cal.App.4th 1470, 1478–1481.) Respondent has repeatedly proposed a brief § 217 hearing and a modest supplemental schedule—conduct that reduces, not increases, cost.

D. Meet-and-confer / stipulation. Respondent invites a stipulation for a short § 217 evidentiary hearing and a limited supplemental briefing/exhibit schedule. This is the least-cost path to a reliable record.

IX. REQUESTED RELIEF

Respondent respectfully requests orders: (1) vacating Oct. 15, 2025; (2) setting a §217 evidentiary hearing (½-day minimum); (3) authorizing short-form subpoenas as above; (4) permitting transcript/supplement upon receipt; and (5) applying §352 even-handedly with proper

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DECLARATION OF FAHED SAYEGH

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Proposed Order (for this request). Set a **§ 217 evidentiary hearing**; authorize short-form subpoenas for the witnesses/custodians listed; require exhibit exchange 5 court days prior; apply **Evid. Code § 352** even-handedly with authentication under **§§ 1400–1402**; allow supplementation with certified transcripts upon receipt.

I am over the age of 18 years and not a party to this action. My business address is **409 East Woodbury Road, Altadena, CA 91001**.

On **October 11, 2025**, I served the foregoing document entitled:

MOTION FOR RECONSIDERATION

on the following person:

Attorney for Petitioner
Kirk A. Kolodji, Esq.
Kolodji Family Law, PC
35 North Lake Avenue, Suite 710
Pasadena, CA 91101
Tel: (310) 691-9671
Email: kirk@kolodjifamilylaw.com

☑ **BY ELECTRONIC SERVICE (CRC 2.251):**
Based on a written agreement of the parties to accept service by electronic transmission, I caused the document to be served to the email address listed above.

Executed on **October 10, 2025**, at **Altadena, California.**

X **SAMERA ARKEL X Samera Arkel**

FAHED FREDDY SAYEGH
407 E. Woodbury Rd.
Altadena, California 91001
Telephone: (310) 877-5033
freddy@thefoxxfirm.com

IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FAHED SAYEGH Petitioner, v. NUHA SAYEGH, Respondent.	CASE NO: 25PDRO01260 (r/w 25PDFL01441 (dissolution lead) (r/w 25PDFL01460 (related dv matter) **[PROPOSED] NOTICE OF MOTION AND MOTION FOR RECONSIDERATION. DECL. FAHED SAYEGH** **(**Code of Civil Procedure §1008 CAL. RULES OF COURT, RULE 2.251)

I. INTRODUCTION

Respondent respectfully requests reconsideration to permit a complete evidentiary record under Family Code §217 with live testimony and authenticated exhibits. The October 15 setting addressed urgent access-to-children concerns; given late supplemental filings and only two court days, Respondent could not secure experts, percipient witnesses, or records custodians. A brief evidentiary setting will promote accuracy and finality without attributing fault to any participant.

II. NEW OR DIFFERENT FACTS DISCOVERED AFTER THE HEARING (CCP §1008(a))

A motion for reconsideration may be granted upon new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) This motion is timely and supported by facts that arose after the October 15 hearing and could not, with reasonable diligence, have been presented that day.

Timeliness/alternative authority. Independently of section 1008, the Court retains inherent authority to correct interim rulings when a more complete record is available (Le Francois v. Goel (2005) 35 Cal.4th 1094), may modify injunctive relief upon changed facts (Code Civ. Proc., § 533), and may modify domestic violence restraining orders on changed circumstances (Fam. Code, § 6345).

A. DCFS school interview (occurred Oct. 16; learned Oct. 19). DCFS social worker Tyler Polk interviewed the minor at Eliot Middle School (~1:20 p.m.). The child reported no Aug. 26 incident at Respondent's home, that neither she nor Mother were there that day, and that Mother instructed her to claim she witnessed an assault, had been hit, and that Respondent wanted to "take the kids away." She also stated she has never witnessed Respondent hitting Mother. Respondent will subpoena Polk and DCFS records.

Admissibility/handling of minor records. Respondent will call DCFS social worker Tyler Polk and seek admission of certified DCFS records under Evidence Code section 1280. To address confidentiality, Respondent requests a protective order and, if needed, in-camera review (Welf. & Inst. Code, § 827; Cal. Rules of Court, rules 5.552, 2.550–2.551). The minor's statements are offered on credibility and state of mind; any further use will be supported by live testimony and applicable exceptions.

B. June 8, 2025 messages recovered Oct. 19 from the minor's phone. Same-day messages describe hand/eye issues and resting, with a photo of Mother's hand—no mention of assault. These contemporaneous statements support a non-assault explanation and contradict later testimony. (Evid. Code §780.) These messages are party admissions (Evid. Code, § 1220) and will be authenticated via device screenshots/metadata and, if necessary, a custodian declaration.

C. Diligence and supplementation. Transcript requests submitted Oct. 15 and Oct. 19 (rejected "case not found"); resubmitted Oct. 23 (pending). Respondent will promptly lodge supplemental transcript excerpts upon receipt.

III. REQUEST FOR RECONSIDERATION TO PERMIT A COMPLETE EVIDENTIARY RECORD

A. §217 / Elkins — request for live testimony. The Oct. 15 setting did not include live testimony within the limited time available. §217 presumes oral testimony; Respondent requests a short live-witness hearing to evaluate credibility, timeline, and mechanism-of-injury.

B. Evidence on a limited record. Certain collateral items were received without foundational witnesses, while central impeachment/exculpatory materials (experts, percipient witnesses, custodians) were unreachable in the time available. An even-handed §352 hearing will allow both sides to present authenticated, probative evidence. For example, a 2011 "broken-window" photograph was received without prior disclosure or authentication; a short Evidence Code §§ 352 and 1400–1402 foundation hearing will avoid collateral confusion.

C. Practical constraints. Late-week supplemental materials left two court days for subpoenas. A short evidentiary setting is needed for proper foundation and cross-examination.

D. Reliability/tailoring. A complete record will aid reliable findings under the DVPA and ensure any relief is narrowly tailored to present circumstances.

E. Credibility, motive, bias (Evid. Code §780). Live testimony is necessary to evaluate credibility and alleged coaching.

IV. WHY RESPONDENT PROCEEDED ON OCT. 15 (NO WAIVER OF §217/ELKINS RIGHTS)

Respondent appeared on Oct. 15 to address urgent access-to-children issues. On Oct. 6, Respondent filed an ex parte application for a non-interference order; the Court denied relief on an ex parte basis and rolled the request to be heard on Oct. 15. Proceeding to seek non-interference/contact relief on Oct. 15 did not reflect readiness to try newly served allegations; it reflected necessity. With only two court days, Respondent could not secure

experts, percipient witnesses, or records custodians. When asked, he agreed to proceed and stated he was "ready" because he needed an order permitting him to see and speak with the children. He had seen one child once (~2 hours) in ~six weeks; any continuance of 45–60 days to secure experts/subpoenas would have pushed contact toward four months.

V. OFFER OF PROOF (IF RECONSIDERATION IS GRANTED)

If an evidentiary hearing is set, Respondent will call:

• Treating/Procedural Physician/Expert (lip injections) — mechanism inconsistent with blunt trauma (Evid. Code §§720, 801–802; §§1400–1402).

• Special-Effects/Makeup Expert — photographic artifacts inconsistent with trauma; reproducible.

• Tuesday Housekeeper (11:00–4:00) — no altercation; neither parent present Aug. 26 (Evid. Code §702).

• DDA Sara Antoun — recantation/reduction of Jan. 19, 2022 claim; lack of DV corroboration (Evid. Code §§780, 1235, 1280).

• Detective Lohmann — Petitioner's recantations; notes; BWV/dispatch gaps (same authorities).

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• Tyler Polk (DCFS) — school interview; statements regarding Aug. 26 and coaching; DCFS records authentication (Evid. Code §§1280, 1220/1235, 780).

Proposed §217 hearing plan (approx. 2.5 hours total): Respondent (15 min); Polk (25); Tuesday housekeeper (20); treating physician (25); SFX expert (20) [or proceed with physician only if preferred]; records custodian (20); cross-examination (30); argument (25).

VI. TIMELINE HIGHLIGHTS

• Jan. 19, 2022: Petitioner recanted to Antoun/Lohmann; admitted in court she was under the influence and the aggressor; acknowledged makeup embellishment.

• Nov. 4, 2023: "Lip" image consistent with cosmetic injections.

• June 8, 2025: Same-day messages/photo (found Oct. 19) show non-assault explanation.

• Aug. 26, 2025: Did not occur per child's school interview and was told to lie.

• Sept. 8, 2025: "Kidnapping" claim contradicted by neutral timestamps (school → dinner → Dodgers game; FaceTime from stadium).

• Sept. 17, 2025: Uncorroborated police report.

VII. CONSEQUENCES ALREADY SUFFERED & PROGRAMS COMPLETED (JAN. 19, 2022)

Without conceding the allegation, even if the Court does not credit the makeup point, Respondent has already borne substantial consequences and completed extensive rehabilitation:

A. Family/Custody: ~9 months loss of placement; 18 months DCFS; ~9 months out of home; public stigma.

C. Programs (All Completed): 52-week DV (High Road, Pasadena); 52-week family therapy (Hannah Joo, LMFT); 18 DCFS family meetings + Feb. 8, 2023 Family Engagement; couples counseling (Regain.us: Anderson, LMFT; Harris, LCSW); therapy groupinars (Apr. 5 & 7, 2022); individual therapy (Dr. Stan Rushing); parenting: Up to Parents (6 hrs, 3/17/2022); CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting).

VIII. SANCTIONS CONTENTIONS ARE UNFOUNDED (CCP § 128.7; FAM. CODE § 271)

A. Section 128.7 compliance. Sanctions under Code of Civil Procedure section 128.7 require a separately noticed motion served at least 21 days before filing (the "safe harbor"); filing cannot occur until day 22. (Id., subd. (c)(1).) Absent strict compliance, sanctions are unavailable.

B. Good-faith basis and diligence. This motion relies on new post-hearing facts (DCFS interview; June 8 messages), a statutory entitlement to live testimony (§ 217; Elkins), and prompt transcript requests. It is timely and narrowly tailored.

C. Family Code section 271. Section 271 requires notice, an opportunity to be heard, a finding that conduct frustrated settlement or unreasonably increased costs, and consideration of ability to pay; sanctions may not be punitive. (See, e.g., In re Marriage of Davenport (2011) 194 Cal.App.4th 1507, 1530–1531; In re Marriage of Feldman (2007) 153 Cal.App.4th 1470, 1478–1481.) Respondent has repeatedly proposed a brief § 217 hearing and a modest supplemental schedule—conduct that reduces, not increases, cost.

D. Meet-and-confer / stipulation. Respondent invites a stipulation for a short § 217 evidentiary hearing and a limited supplemental briefing/exhibit schedule. This is the least-cost path to a reliable record.

IX. REQUESTED RELIEF

Respondent respectfully requests orders: (1) vacating Oct. 15, 2025; (2) setting a §217 evidentiary hearing (½-day minimum); (3) authorizing short-form subpoenas as above; (4) permitting transcript/supplement upon receipt; and (5) applying §352 even-handedly with proper

FAHED SAYEGH

In Pro Per x_____ 10/24/2025

DECLARATION OF FAHED SAYEGH

SUPPLEMENT

I, Fahed "Freddy" Sayegh, declare:

I am the Respondent and the biological father of Mia and Jordan Sayegh. I have personal knowledge of the facts stated and could testify competently thereto.

New evidence discovered after Oct. 15 9. On Oct. 16, 2025, Tyler Polk, a DCFS social worker, interviewed our daughter at Eliot Middle School; I learned of this on Oct. 19. She reported that no incident occurred at my home on Aug. 26 and that neither she nor Petitioner were there; she further reported Petitioner instructed her to say she witnessed an assault, to say she had been hit, and to say I wanted to take the children away. She has never witnessed me hitting Petitioner. I intend to subpoena Mr. Polk and DCFS records. 10. On Oct. 19, 2025, I recovered messages from our daughter's iPhone reflecting Petitioner's June 8, 2025 statements describing hand/eye issues and the need to rest, with a same-day photo of her hand, and no mention of assault. These statements contradict later testimony and are consistent with a non-assault cause.

Procedural history and exigency 2. On Sept. 9, 2025, Petitioner filed for a protective order (Case No. 25PDR001246). The Court granted relief as to Petitioner only and denied relief as to the children. 3. On Sept. 12, 2025, I filed my own ex parte request (Case No. 25PDR001260) seeking protection for myself and the children. The ex parte was denied, with a hearing set for Oct. 3, 2025.

3B. On Oct. 6, 2025, I filed an Ex Parte Application for a Non-Interference Order. The Court denied ex parte relief and set/rolled the request to be heard on Oct. 15, 2025.

3A. On Oct. 1, 2025, the Court did not grant non-interference relief ex parte and **consolidated/rolled** that request into the **Oct. 15, 2025** hearing together with the DVRO calendar. 4. On Sept. 18, 2025, I filed an ex parte request for visitation and custody in this family case (25PDFL01441). The Court denied ex parte relief for lack of exigency. 5. On Oct. 1, 2025,

the Court set matters for Oct. 15, 2025 under this case number. The DVRO matter that had been scheduled for October 1 was consolidated/continued to October 15 by the assigned judicial officer. When I requested emergency orders, the Court stated: “Sir, there is nothing preventing you from being with, seeing, communicating, or having the children live with you.” Despite that statement, Petitioner continued concealing the children and blocking contact.

5A. After my Ex Parte Application for Non-Interference was not granted and was consolidated into the October 15 calendar, I did not seek to continue the October 15 date another 45–60 days to secure experts and serve subpoenas because doing so would have resulted in nearly four months without either seeing or hearing from my children. Out of necessity and desperation to restore contact, I proceeded on Oct. 15 while preserving my rights under Family Code §217/Elkins. I therefore appeared on October 15 to seek immediate non-interference/contact relief while preserving my rights under Family Code §217/Elkins.

Concealment, school disruption, and attempts to locate 6. Since Sept. 8, 2025, Petitioner has concealed the children, blocked their phones and social access, and misrepresented to schools that restraining orders existed against me. She provided unsigned “protective” directives to Eliot Arts and Altadena Arts Magnet stating the children were to be released only to her. 7. Petitioner repeatedly enrolled/un-enrolled the children at different schools (Oak Middle School, La Rosa, Eliot Arts Magnet, Altadena Arts Magnet). The children missed consecutive school days (e.g., Sept. 9, 10, 11, 12, 15, 16). As of early October, I could not confirm enrollment in Monrovia or Pasadena Unified. 7A. After searching for approximately six weeks, I located Mia on her first day back at school. I was able to see her only once, for approximately two hours. I immediately ensured I could communicate with her by securing contact with her and her phone. On that same day, Petitioner called the police on me despite my full authority to see my children; no lawful order barred my contact. 8. On Oct. 1, 2025, I appeared at Monrovia Unified with a witness and presented identification and birth certificates. I cited FERPA and Ed. Code provisions, yet access was refused absent a custody order. Pasadena Unified confirmed the children were not enrolled

there. 8B. When Petitioner's supplemental declaration added new allegations shortly before the Oct. 15 hearing, I had only two court days to respond. I was unable, within that time, to secure attendance of experts, percipient witnesses, or records custodians. I proceeded on Oct. 15 to request non-interference orders so I could see and speak with my children, with the understanding that any merits hearing on the expanded allegations would require live testimony under Family Code §217.

Jan. 19, 2022 incident and consequences/programs 11. Petitioner previously recanted material aspects of the Jan. 19, 2022 allegation to DDA Sara Antoun and Detective Lohmann; in court she admitted being under the influence and the aggressor (sweater/zipper scratch; thrown table) and acknowledged using makeup to embellish injuries. Regardless, I suffered substantial collateral consequences: approximately nine months without the children, 18 months of DCFS supervision, arrest and $50,000 bail ($5,000 posted), removal from the family home for about nine months, public stigma, and significant fees. I completed multiple court-approved programs, including a 52-week DV program (The High Road), 52-week family therapy (Hannah Joo, LMFT), 18 DCFS family meetings plus a Family Engagement Meeting, marriage counseling via Regain.us, individual therapy (Dr. Stan Rushing), and parenting courses through Up to Parents and CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting). These facts are offered to address present risk, need, and tailoring—not as a concession of guilt.

Transcripts; supplementation 12. I ordered transcripts on Oct. 15 and Oct. 19 (both rejected "case not found") and resubmitted on Oct. 23 (pending). I will promptly supplement this motion with certified transcripts upon receipt.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2025, at Altadena, California.

Fahed “Freddy” Sayegh

ATTACHMENT – REQUEST FOR LIVE TESTIMONY UNDER FAMILY CODE § 217 (Elkins)

Legal Standard. Family Code § 217 presumes live, in-person (or remote) testimony in contested hearings if requested; denial requires an express finding of **good cause** and the court must state reasons. (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337.) Respondent respectfully requests a brief, focused evidentiary hearing so credibility, timeline, and mechanism-of-injury can be assessed on a complete record.

Why Live Testimony Is Needed Now. A Friday-evening supplemental declaration left only two court days before the Oct. 15 setting, making it impracticable to subpoena experts, percipient witnesses, and records custodians. Post-hearing facts (DCFS school interview; June 8 messages) directly affect credibility and material issues. No good cause exists to refuse oral testimony; a short hearing will materially assist reliable findings.

Witness List, Offers of Proof, and Time Estimates (Total ≈ 2.5 hours).

1. **Tyler Polk (DCFS social worker)** — school interview of minor on Oct. 16; statements that no Aug. 26 incident occurred at Respondent’s home and that coaching occurred; foundation for DCFS records. *Evid. Code §§ 1280, 780.* **(25 min)**
2. **Tuesday Housekeeper (11:00 a.m.–4:00 p.m.)** — no altercation; neither parent present during claimed Aug. 26 window. *Evid. Code § 702.* **(20 min)**
3. **Treating/Procedural Physician (lip injections)** — mechanism/opinion that “lip injury” is inconsistent with blunt trauma and consistent with cosmetic injection after-effects; authenticate related records/photos. *Evid. Code §§ 720, 801–802; 1400–1402.* **(25 min)**
4. **Special-Effects/Makeup Expert (SFX)** — photographic artifacts inconsistent with trauma; reproducible demonstration. *Evid. Code §§ 720, 801–802.* **(20 min)** *(If the Court*

prefers one expert, Respondent will proceed with the physician only and submit SFX analysis by declaration.)

5. **Records Custodian(s)** — authenticate neutral, time-stamped records: school attendance/checkout; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10. *Evid. Code §§ 1271, 1560–1561; 780.* **(20 min)**
6. **DDA Sara Antoun** — authentication/summary of communications reflecting recantation/reduction regarding Jan. 19, 2022 and absence of corroboration. *Evid. Code §§ 780, 1235, 1280.* **(20 min)**
7. **Detective Lohmann** — Petitioner's recantations; notes; BWV/dispatch indices. *Evid. Code §§ 780, 1235, 1280.* **(20 min)**
8. **Respondent (limited)** — succinct narrative to connect timestamps and exhibits. **(15 min)**

Cross-examination/argument reserve: (≈55 min)

Exhibits To Authenticate. (a) **June 8, 2025 iMessage thread** with same-day hand photo (party-opponent admissions); (b) school attendance/checkout logs; (c) carrier call/FaceTime metadata; (d) merchant receipts; (e) livestream/ticketing logs; (f) medical/aftercare records for injections; (g) DCFS notes and email correspondence; (h) prior statements to DDA/Detective. *Evid. Code §§ 1220, 1271, 1280, 1400–1402.*

Confidentiality & Minor Handling. Respondent requests a **protective order** and, if appropriate, **in-camera review** for DCFS/minor records. *Welf. & Inst. Code § 827; CRC 5.552, 2.550–2.551.*

Logistics. Respondent and witnesses are prepared to appear **in person** or **by remote means** consistent with departmental procedures. Respondent is amenable to reasonable time limits and sequencing as the Court prefers.

Proposed Order (for this request). Set a **§ 217 evidentiary hearing**; authorize short-form subpoenas for the witnesses/custodians listed; require exhibit exchange 5 court days prior; apply **Evid. Code § 352** even-handedly with authentication under **§§ 1400–1402**; allow supplementation with certified transcripts upon receipt.

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FAHED SAYEGH

In Pro Per x_____ 10/24/2025

DECLARATION OF FAHED SAYEGH

SUPPLEMENT

I, Fahed "Freddy" Sayegh, declare:

I am the Respondent and the biological father of Mia and Jordan Sayegh. I have personal knowledge of the facts stated and could testify competently thereto.

New evidence discovered after Oct. 15 9. On Oct. 16, 2025, Tyler Polk, a DCFS social worker, interviewed our daughter at Eliot Middle School; I learned of this on Oct. 19. She reported that no incident occurred at my home on Aug. 26 and that neither she nor Petitioner were there; she further reported Petitioner instructed her to say she witnessed an assault, to say she had been hit, and to say I wanted to take the children away. She has never witnessed me hitting Petitioner. I intend to subpoena Mr. Polk and DCFS records. 10. On Oct. 19, 2025, I recovered messages from our daughter's iPhone reflecting Petitioner's June 8, 2025 statements describing hand/eye issues and the need to rest, with a same-day photo of her hand, and no mention of assault. These statements contradict later testimony and are consistent with a non-assault cause.

Procedural history and exigency 2. On Sept. 9, 2025, Petitioner filed for a protective order (Case No. 25PDR001246). The Court granted relief as to Petitioner only and denied relief as to the children. 3. On Sept. 12, 2025, I filed my own ex parte request (Case No. 25PDR001260) seeking protection for myself and the children. The ex parte was denied, with a hearing set for Oct. 3, 2025.

3B. On Oct. 6, 2025, I filed an Ex Parte Application for a Non-Interference Order. The Court denied ex parte relief and set/rolled the request to be heard on Oct. 15, 2025.

3A. On Oct. 1, 2025, the Court did not grant non-interference relief ex parte and **consolidated/rolled** that request into the **Oct. 15, 2025** hearing together with the DVRO calendar. 4. On Sept. 18, 2025, I filed an ex parte request for visitation and custody in this family case (25PDFL01441). The Court denied ex parte relief for lack of exigency. 5. On Oct. 1, 2025,

the Court set matters for Oct. 15, 2025 under this case number. The DVRO matter that had been scheduled for October 1 was consolidated/continued to October 15 by the assigned judicial officer. When I requested emergency orders, the Court stated: "Sir, there is nothing preventing you from being with, seeing, communicating, or having the children live with you." Despite that statement, Petitioner continued concealing the children and blocking contact.

5A. After my Ex Parte Application for Non-Interference was not granted and was consolidated into the October 15 calendar, I did not seek to continue the October 15 date another 45–60 days to secure experts and serve subpoenas because doing so would have resulted in nearly four months without either seeing or hearing from my children. Out of necessity and desperation to restore contact, I proceeded on Oct. 15 while preserving my rights under Family Code §217/Elkins. I therefore appeared on October 15 to seek immediate non-interference/contact relief while preserving my rights under Family Code §217/Elkins.

Concealment, school disruption, and attempts to locate 6. Since Sept. 8, 2025, Petitioner has concealed the children, blocked their phones and social access, and misrepresented to schools that restraining orders existed against me. She provided unsigned "protective" directives to Eliot Arts and Altadena Arts Magnet stating the children were to be released only to her. 7. Petitioner repeatedly enrolled/un-enrolled the children at different schools (Oak Middle School, La Rosa, Eliot Arts Magnet, Altadena Arts Magnet). The children missed consecutive school days (e.g., Sept. 9, 10, 11, 12, 15, 16). As of early October, I could not confirm enrollment in Monrovia or Pasadena Unified. 7A. After searching for approximately six weeks, I located Mia on her first day back at school. I was able to see her only once, for approximately two hours. I immediately ensured I could communicate with her by securing contact with her and her phone. On that same day, Petitioner called the police on me despite my full authority to see my children; no lawful order barred my contact. 8. On Oct. 1, 2025, I appeared at Monrovia Unified with a witness and presented identification and birth certificates. I cited FERPA and Ed. Code provisions, yet access was refused absent a custody order. Pasadena Unified confirmed the children were not enrolled

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Jan. 19, 2022 incident and consequences/programs 11. Petitioner previously recanted material aspects of the Jan. 19, 2022 allegation to DDA Sara Antoun and Detective Lohmann; in court she admitted being under the influence and the aggressor (sweater/zipper scratch; thrown table) and acknowledged using makeup to embellish injuries. Regardless, I suffered substantial collateral consequences: approximately nine months without the children, 18 months of DCFS supervision, arrest and $50,000 bail ($5,000 posted), removal from the family home for about nine months, public stigma, and significant fees. I completed multiple court-approved programs, including a 52-week DV program (The High Road), 52-week family therapy (Hannah Joo, LMFT), 18 DCFS family meetings plus a Family Engagement Meeting, marriage counseling via Regain.us, individual therapy (Dr. Stan Rushing), and parenting courses through Up to Parents and CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting). These facts are offered to address present risk, need, and tailoring—not as a concession of guilt.

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I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on _____, 2025, at Altadena, California.

Fahed “Freddy” Sayegh

ATTACHMENT – REQUEST FOR LIVE TESTIMONY UNDER FAMILY CODE § 217 (Elkins)

Legal Standard. Family Code § 217 presumes live, in-person (or remote) testimony in contested hearings if requested; denial requires an express finding of **good cause** and the court must state reasons. (*Elkins v. Superior Court* (2007) 41 Cal.4th 1337.) Respondent respectfully requests a brief, focused evidentiary hearing so credibility, timeline, and mechanism-of-injury can be assessed on a complete record.

Why Live Testimony Is Needed Now. A Friday-evening supplemental declaration left only two court days before the Oct. 15 setting, making it impracticable to subpoena experts, percipient witnesses, and records custodians. Post-hearing facts (DCFS school interview; June 8 messages) directly affect credibility and material issues. No good cause exists to refuse oral testimony; a short hearing will materially assist reliable findings.

Witness List, Offers of Proof, and Time Estimates (Total ≈ 2.5 hours).

1. **Tyler Polk (DCFS social worker)** — school interview of minor on Oct. 16; statements that no Aug. 26 incident occurred at Respondent’s home and that coaching occurred; foundation for DCFS records. *Evid. Code §§ 1280, 780.* **(25 min)**
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3. **Treating/Procedural Physician (lip injections)** — mechanism/opinion that “lip injury” is inconsistent with blunt trauma and consistent with cosmetic injection after-effects; authenticate related records/photos. *Evid. Code §§ 720, 801–802; 1400–1402.* **(25 min)**
4. **Special-Effects/Makeup Expert (SFX)** — photographic artifacts inconsistent with trauma; reproducible demonstration. *Evid. Code §§ 720, 801–802.* **(20 min)** *(If the Court*

prefers one expert, Respondent will proceed with the physician only and submit SFX analysis by declaration.)

5. **Records Custodian(s)** — authenticate neutral, time-stamped records: school attendance/checkout; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10. *Evid. Code §§ 1271, 1560–1561; 780.* **(20 min)**
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8. **Respondent (limited)** — succinct narrative to connect timestamps and exhibits. **(15 min)**

Cross-examination/argument reserve: (≈55 min)

Exhibits To Authenticate. (a) **June 8, 2025 iMessage thread** with same-day hand photo (party-opponent admissions); (b) school attendance/checkout logs; (c) carrier call/FaceTime metadata; (d) merchant receipts; (e) livestream/ticketing logs; (f) medical/aftercare records for injections; (g) DCFS notes and email correspondence; (h) prior statements to DDA/Detective. *Evid. Code §§ 1220, 1271, 1280, 1400–1402.*

Confidentiality & Minor Handling. Respondent requests a **protective order** and, if appropriate, **in-camera review** for DCFS/minor records. *Welf. & Inst. Code § 827; CRC 5.552, 2.550–2.551.*

Logistics. Respondent and witnesses are prepared to appear **in person** or **by remote means** consistent with departmental procedures. Respondent is amenable to reasonable time limits and sequencing as the Court prefers.

Proposed Order (for this request). Set a **§ 217 evidentiary hearing**; authorize short-form subpoenas for the witnesses/custodians listed; require exhibit exchange 5 court days prior; apply **Evid. Code § 352** even-handedly with authentication under **§§ 1400–1402**; allow supplementation with certified transcripts upon receipt.

I am over the age of 18 years and not a party to this action. My business address is **409 East Woodbury Road, Altadena, CA 91001**.

On **October 11, 2025**, I served the foregoing document entitled:

MOTION FOR RECONSIDERATION

on the following person:

Attorney for Petitioner
Kirk A. Kolodji, Esq.
Kolodji Family Law, PC
35 North Lake Avenue, Suite 710
Pasadena, CA 91101
Tel: (310) 691-9671
Email: kirk@kolodjifamilylaw.com

☑ **BY ELECTRONIC SERVICE (CRC 2.251):**
Based on a written agreement of the parties to accept service by electronic transmission, I caused the document to be served to the email address listed above.

Executed on **October 10, 2025**, at **Altadena, California.**

X **SAMERA ARKEL X Samera Arkel**

FAHED FREDDY SAYEGH
407 E. Woodbury Rd.
Altadena, California 91001
Telephone: (310) 877-5033
freddy@thefoxxfirm.com

IN PRO PER

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

FAHED SAYEGH Petitioner, v. NUHA SAYEGH, Respondent.	CASE NO: 25PDRO01260 (r/w 25PDFL01441 (dissolution lead) (r/w 25PDFL01460 (related dv matter) **[PROPOSED] NOTICE OF MOTION AND MOTION FOR RECONSIDERATION. DECL. FAHED SAYEGH** **(**Code of Civil Procedure §1008 CAL. RULES OF COURT, RULE 2.251)

I. INTRODUCTION

Respondent respectfully requests reconsideration to permit a complete evidentiary record under Family Code §217 with live testimony and authenticated exhibits. The October 15 setting addressed urgent access-to-children concerns; given late supplemental filings and only two court days, Respondent could not secure experts, percipient witnesses, or records custodians. A brief evidentiary setting will promote accuracy and finality without attributing fault to any participant.

II. NEW OR DIFFERENT FACTS DISCOVERED AFTER THE HEARING (CCP §1008(a))

A motion for reconsideration may be granted upon new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).) This motion is timely and supported by facts that arose after the October 15 hearing and could not, with reasonable diligence, have been presented that day.

Timeliness/alternative authority. Independently of section 1008, the Court retains inherent authority to correct interim rulings when a more complete record is available (Le Francois v. Goel (2005) 35 Cal.4th 1094), may modify injunctive relief upon changed facts (Code Civ. Proc., § 533), and may modify domestic violence restraining orders on changed circumstances (Fam. Code, § 6345).

A. DCFS school interview (occurred Oct. 16; learned Oct. 19). DCFS social worker Tyler Polk interviewed the minor at Eliot Middle School (~1:20 p.m.). The child reported no Aug. 26 incident at Respondent's home, that neither she nor Mother were there that day, and that Mother instructed her to claim she witnessed an assault, had been hit, and that Respondent wanted to "take the kids away." She also stated she has never witnessed Respondent hitting Mother. Respondent will subpoena Polk and DCFS records.

Admissibility/handling of minor records. Respondent will call DCFS social worker Tyler Polk and seek admission of certified DCFS records under Evidence Code section 1280. To address confidentiality, Respondent requests a protective order and, if needed, in-camera review (Welf. & Inst. Code, § 827; Cal. Rules of Court, rules 5.552, 2.550–2.551). The minor's statements are offered on credibility and state of mind; any further use will be supported by live testimony and applicable exceptions.

B. June 8, 2025 messages recovered Oct. 19 from the minor's phone. Same-day messages describe hand/eye issues and resting, with a photo of Mother's hand—no mention of assault. These contemporaneous statements support a non-assault explanation and contradict later testimony. (Evid. Code §780.) These messages are party admissions (Evid. Code, § 1220) and will be authenticated via device screenshots/metadata and, if necessary, a custodian declaration.

C. Diligence and supplementation. Transcript requests submitted Oct. 15 and Oct. 19 (rejected "case not found"); resubmitted Oct. 23 (pending). Respondent will promptly lodge supplemental transcript excerpts upon receipt.

III. REQUEST FOR RECONSIDERATION TO PERMIT A COMPLETE EVIDENTIARY RECORD

A. §217 / Elkins — request for live testimony. The Oct. 15 setting did not include live testimony within the limited time available. §217 presumes oral testimony; Respondent requests a short live-witness hearing to evaluate credibility, timeline, and mechanism-of-injury.

B. Evidence on a limited record. Certain collateral items were received without foundational witnesses, while central impeachment/exculpatory materials (experts, percipient witnesses, custodians) were unreachable in the time available. An even-handed §352 hearing will allow both sides to present authenticated, probative evidence. For example, a 2011 "broken-window" photograph was received without prior disclosure or authentication; a short Evidence Code §§ 352 and 1400–1402 foundation hearing will avoid collateral confusion.

C. Practical constraints. Late-week supplemental materials left two court days for subpoenas. A short evidentiary setting is needed for proper foundation and cross-examination.

D. Reliability/tailoring. A complete record will aid reliable findings under the DVPA and ensure any relief is narrowly tailored to present circumstances.

E. Credibility, motive, bias (Evid. Code §780). Live testimony is necessary to evaluate credibility and alleged coaching.

IV. WHY RESPONDENT PROCEEDED ON OCT. 15 (NO WAIVER OF §217/ELKINS RIGHTS)

Respondent appeared on Oct. 15 to address urgent access-to-children issues. On Oct. 6, Respondent filed an ex parte application for a non-interference order; the Court denied relief on an ex parte basis and rolled the request to be heard on Oct. 15. Proceeding to seek non-interference/contact relief on Oct. 15 did not reflect readiness to try newly served allegations; it reflected necessity. With only two court days, Respondent could not secure

experts, percipient witnesses, or records custodians. When asked, he agreed to proceed and stated he was "ready" because he needed an order permitting him to see and speak with the children. He had seen one child once (~2 hours) in ~six weeks; any continuance of 45–60 days to secure experts/subpoenas would have pushed contact toward four months.

V. OFFER OF PROOF (IF RECONSIDERATION IS GRANTED)

If an evidentiary hearing is set, Respondent will call:

• Treating/Procedural Physician/Expert (lip injections) — mechanism inconsistent with blunt trauma (Evid. Code §§720, 801–802; §§1400–1402).

• Special-Effects/Makeup Expert — photographic artifacts inconsistent with trauma; reproducible.

• Tuesday Housekeeper (11:00–4:00) — no altercation; neither parent present Aug. 26 (Evid. Code §702).

• DDA Sara Antoun — recantation/reduction of Jan. 19, 2022 claim; lack of DV corroboration (Evid. Code §§780, 1235, 1280).

• Detective Lohmann — Petitioner's recantations; notes; BWV/dispatch gaps (same authorities).

• Records Custodians — school attendance; carrier metadata; ARCO 10:19; Home Depot 11:03; livestream 6:30–8:30; Dodgers ticketing/turnstile 7:10 (Evid. Code §§1271, 1560–1561; §780).

• Tyler Polk (DCFS) — school interview; statements regarding Aug. 26 and coaching; DCFS records authentication (Evid. Code §§1280, 1220/1235, 780).

Proposed §217 hearing plan (approx. 2.5 hours total): Respondent (15 min); Polk (25); Tuesday housekeeper (20); treating physician (25); SFX expert (20) [or proceed with physician only if preferred]; records custodian (20); cross-examination (30); argument (25).

VI. TIMELINE HIGHLIGHTS

• Jan. 19, 2022: Petitioner recanted to Antoun/Lohmann; admitted in court she was under the influence and the aggressor; acknowledged makeup embellishment.

• Nov. 4, 2023: "Lip" image consistent with cosmetic injections.

• June 8, 2025: Same-day messages/photo (found Oct. 19) show non-assault explanation.

• Aug. 26, 2025: Did not occur per child's school interview and was told to lie.

• Sept. 8, 2025: "Kidnapping" claim contradicted by neutral timestamps (school → dinner → Dodgers game; FaceTime from stadium).

• Sept. 17, 2025: Uncorroborated police report.

VII. CONSEQUENCES ALREADY SUFFERED & PROGRAMS COMPLETED (JAN. 19, 2022)

Without conceding the allegation, even if the Court does not credit the makeup point, Respondent has already borne substantial consequences and completed extensive rehabilitation:

A. Family/Custody: ~9 months loss of placement; 18 months DCFS; ~9 months out of home; public stigma.

C. Programs (All Completed): 52-week DV (High Road, Pasadena); 52-week family therapy (Hannah Joo, LMFT); 18 DCFS family meetings + Feb. 8, 2023 Family Engagement; couples counseling (Regain.us: Anderson, LMFT; Harris, LCSW); therapy groupinars (Apr. 5 & 7, 2022); individual therapy (Dr. Stan Rushing); parenting: Up to Parents (6 hrs, 3/17/2022); CALPARENTS/Child Parent Institute (Transitioning to Co-Parenting; Managing Family Anger; Positive Parenting).

VIII. SANCTIONS CONTENTIONS ARE UNFOUNDED (CCP § 128.7; FAM. CODE § 271)

A. Section 128.7 compliance. Sanctions under Code of Civil Procedure section 128.7 require a separately noticed motion served at least 21 days before filing (the "safe harbor"); filing cannot occur until day 22. (Id., subd. (c)(1).) Absent strict compliance, sanctions are unavailable.

B. Good-faith basis and diligence. This motion relies on new post-hearing facts (DCFS interview; June 8 messages), a statutory entitlement to live testimony (§ 217; Elkins), and prompt transcript requests. It is timely and narrowly tailored.

C. Family Code section 271. Section 271 requires notice, an opportunity to be heard, a finding that conduct frustrated settlement or unreasonably increased costs, and consideration of ability to pay; sanctions may not be punitive. (See, e.g., In re Marriage of Davenport (2011) 194 Cal.App.4th 1507, 1530–1531; In re Marriage of Feldman (2007) 153 Cal.App.4th 1470, 1478–1481.) Respondent has repeatedly proposed a brief § 217 hearing and a modest supplemental schedule—conduct that reduces, not increases, cost.

D. Meet-and-confer / stipulation. Respondent invites a stipulation for a short § 217 evidentiary hearing and a limited supplemental briefing/exhibit schedule. This is the least-cost path to a reliable record.

IX. REQUESTED RELIEF

Respondent respectfully requests orders: (1) vacating Oct. 15, 2025; (2) setting a §217 evidentiary hearing (½-day minimum); (3) authorizing short-form subpoenas as above; (4) permitting transcript/supplement upon receipt; and (5) applying §352 even-handedly with proper

FAHED SAYEGH

In Pro Per x_____ 10/24/2025

DECLARATION OF FAHED SAYEGH

SUPPLEMENT

I, Fahed "Freddy" Sayegh, declare:

I am the Respondent and the biological father of Mia and Jordan Sayegh. I have personal knowledge of the facts stated and could testify competently thereto.

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Kirk A. Kolodji, Esq.
Kolodji Family Law, PC
35 North Lake Avenue, Suite 710
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Tel: (310) 691-9671
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